

CHAPTER 8: SPECIAL REQUIREMENTS

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Section 8.1 Purpose

The Town of China Grove finds that there are certain uses that exist which may be constructed, continued, and/or expanded provided they meet certain mitigating conditions specific to their design and/or operation. Such conditions ensure compatibility among uses so that they may be located in proximity to one another without adverse effects to either. This Chapter specifies those requirements that must be met by all the uses listed in the uses permitted with Special Requirements section for each District in Chapter 3.

Each use shall be permitted in compliance with all conditions listed for the use in this Chapter. Certain uses are also classified as Special Uses and require Town Board approval.

Section 8.2 Accessory Dwellings

Accessory dwellings may be located in a building separate from the principal dwelling subject to the following requirements:

- A. The principal dwelling shall be occupied, and both the accessory dwelling and principal dwelling shall be owned by the same person.
- B. The accessory dwelling shall not exceed one-half (½) of the total area of the principal dwelling.
- C. Accessory dwellings shall meet the setbacks of the principal structure as set forth for the zoning district in which it is located and shall be allowed only in the rear or side yard of the principal dwelling.
- D. Accessory dwellings shall be built to North Carolina Building Standards.

Section 8.3 Accessory Structures (Residential)

- A. Any structure attached to the principal structure shall be subject to all regulations applicable to the principal structure.
- B. Accessory structures shall be constructed in the side or rear yard, except in the Rural Preservation district where the accessory structure is setback a minimum of 150 feet from the street right-of-way.
- C. No accessory structure shall be located closer than three (3) feet from any other building on the same lot.
- D. Mailboxes, newspaper boxes, walls, fences, birdhouses, flagpoles, and pump covers may be placed in any yard, and no zoning permit is needed for these structures.
- E. Fences do not require a zoning permit and shall be regulated as follows:

Residential fences materials shall be constructed of any combination of treated or composite wood post and planks, rot-resistant wood (such as cypress or redwood), wrought iron, vinyl, or decorative metal materials. Walls shall be constructed of brick, stone, masonry materials, or products designed to

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resemble these materials. Fences shall not prevent the immediate view of, or access to, fire hydrants, or other fire-fighting water supply devices, in accordance with the Fire Prevention Code.

Rear Yard Fences:

- Must be no taller than six (6) feet and six (6) inches (6 ½ feet tall), measured from natural grade
- Have the supporting posts on the inside (facing the fence owner's property)
- Must be located on the Owners side of the property line
- Must not extend beyond the front façade of any residence

Non-Solid Fences:

- Have supporting posts on the inside of fence
- Fences located in the front yard must be no more than four (4) feet tall and must not block visibility. Fence must have a minimum of 50% open spaces.

- F. Doghouses up to 15 square feet of total area are permitted in the rear yard. No zoning permit is required if the doghouse is 15 square feet or less in gross floor area.
- G. No accessory structure shall be permitted that involves or requires any external features which are not primarily residential in nature or character.
- H. An accessory structure may not exceed the height of the principal structure.
- I. On any lot one (1) acre or less in area containing a principal residential use, the total area of all accessory structures (excluding outdoor swimming pools) shall not exceed one-half (1/2) the total area of the principal structure.
- J. Satellite dishes do not require a zoning permit and shall be regulated as follows:
- Satellite dishes shall be no larger than two (2) feet in diameter unless the applicant can demonstrate the need for a larger size.
 - Satellite dishes whose reflective surface is solid shall be painted a subdued or natural color.
- K. Under no circumstances may a vehicle, trailer, or manufactured home be used as an accessory structure.
- L. Any accessory structures in R-M zoning meeting the UDO requirements for accessory structures which existed prior to April 5, 2022 shall be considered legally nonconforming. Additionally, new accessory structures developed in conjunction with R-M development meeting the requirements of Section 7.5.5 (special provisions for lots with total square footage of less than 20,000sf in R-M zoning) shall be permitted by right.

Section 8.4 Adult Establishments

- A. No adult establishment shall be located less than 1,000 ft from a school, church, day care center, youth camp, community center, civic building, park, lot in residential use, lot with residential districting or other adult establishment. No adult establishment shall be located less than 1,000 ft from any other adult entertainment establishment.
- B. No more than one (1) adult establishment may be located within the same structure or on the same deeded lot.

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- C. All openings shall be constructed so as to prevent visibility of the interior from outside the building.
- D. One (1) ground sign per street front shall be permitted with a maximum of twelve (12) sq. ft. in size. The sign may be indirectly lighted and must be located a minimum of five (5) ft off the road right-of-way. No sign shall be located on premises which flashes, revolves, rotates, or swings by mechanical means (lights must be motionless) or which uses a change of lighting to depict action or to create a special effect or scene. No exterior signage or building element shall be pornographic in nature or convey any such idea or element. All signs are also subject to provisions of Chapter 11 Signs.
- E. Building colors shall be muted and naturally occurring earth tones. Bright and highly reflective or extremely shiny finishes are prohibited unless used sparingly with an approved architectural plan.
- F. Neon or flashing lights or fluttering devices designed and used to attract attention are not permitted. No color outdoor lighting shall be permitted.
- G. Amplification of sound directed outside of the building used by the establishment is not permitted.

Section 8.5 Agricultural Uses

- A. Accessory uses/structures and outdoor storage associated with agricultural uses on properties of greater than one (1) acre are permitted subject to the issuance of a zoning permit and are not subject the requirements of Section 4.3. However, they are subject to the accessory structure setbacks for their respective zoning districts.
- B. Existing agricultural uses in the R-S district may continue and expand on the same property. An agricultural use is considered existing if a property has received agricultural property tax status any time within the last five (5) years. New agricultural uses may be established in the R-S Suburban Residential District subject to the issuance of a Special Use Permit.
- C. Property within the Town's extra-territorial jurisdiction and used for bona fide farm purposes is exempt from the zoning requirements of this ordinance to the same extent bona fide farming activities are exempt from county zoning pursuant to NC GS 160D-903(a). NCGS 160D-903 (c) defines property as a single tract of property, or an identifiable portion of a single tract of property. Property that ceases to be used for bona fide farm purposes shall become subject to the requirements of this ordinance. Bona fide farms in the extra-territorial jurisdiction are subject to Rowan County's Flood Damage Prevention Ordinance and floodplain development permitting.
- D. Beekeeping:
 - A single parcel may have up to five (5) hives.
 - The hive must be placed at ground level or securely attached to an anchor or stand.
 - The hive must be placed behind the residence and shall be not less than fifty (50) feet from any property line.
 - The hive must be removed if the owner no longer maintains the hive or if removal is necessary to protect the health, safety, and welfare of the public.

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Section 8.6 Animal Slaughtering and Processing

- A. Minimum tract size – 10 acres
- B. Minimum perimeter setbacks – 100 feet
- C. No such operation shall be located within 1,000 feet of any residential zoning district.
- D. No open lagoons shall be permitted.
- E. A refuse and waste storage plan (collection and disposal plan) must be submitted and approved by the Board prior to issuance of a special use permit.
- F. No livestock shall be permitted to be stored overnight.
- G. Any structures which may be deemed noxious, toxic, or offensive by reason of odor, dust, vibration, smoke, gas, or fumes shall require abatement plans for such nuisances for the protection of public health, safety, and welfare.
- H. All animals awaiting processing are to be housed within a fully enclosed structure.
- I. All inedible offal, meat that is not food, condemned material and refuse of the meat processing shall be refrigerated and stored in the interior of a full enclosed structure until time of pick-up or final disposal.

Section 8.7 Automotive, Boat, Recreational Vehicles (RV), Heavy Equipment, Manufactured Home Sales and/or Service and Commercial Parking Lots

- A. Large surface parking lots & display areas should be visually and functionally segmented into several smaller lots. The size of any single surface parking lot or display area shall be limited to three (3) acres, unless divided by a street, principal building, or an opaque screen/buffer. Parking lots and display areas shall be paved. Street-facing parking lot and display areas shall have a Street Planting Yard installed as described in Section 11.3.4
- B. No outdoor sound system shall be permitted which can be heard beyond the boundaries of the property.
- C. Shall comply with all applicable provisions of this ordinance, including but not limited to Chapter 10 Parking and Infrastructure.
- D. Commercial parking lots, as a primary use, shall require Conditional Rezoning in the CB District.

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Section 8.8 Bed and Breakfast Homes and Inns

A bed & breakfast home is a use that takes place within a building that prior to such an establishment, was a single-family residence, that consists of renting from one (1) to eight (8) dwelling rooms on a daily basis to tourists, vacationers, and business travelers, where meals are provided only to guests. A bed & breakfast inn is a business establishment of more than nine (9) guest rooms that offers bed and breakfast accommodations to at least nine but not more than twenty-three (23) persons.

- A. Single family homes used as bed and breakfast homes shall have a minimum heated floor area of 1,500 square feet.
- B. The maximum number of guest bedrooms for each proposed bed and breakfast home shall be four (4) unless the applicant can demonstrate that the original floor plan of the structure contained a larger number of bedrooms, in which case, the original number of bedrooms may be approved as allowable guest lodging. In no case shall the number of guests exceed eight (8). The maximum number of guest bedrooms for each proposed bed and breakfast inn shall be nine (9).
- C. The home or inn shall be operated by a resident manager (shall be a full-time resident).
- D. All guest parking shall be to the rear of the home. There shall be one parking space per room of lodging.
- E. Signs for bed and breakfast homes and inns shall be limited to one ground sign per establishment. Such sign shall not exceed five (5) square feet unless approved by the Zoning Administrator. The sign shall not be illuminated and shall be an identification sign only. Location of sign shall be governed by Chapter 11 Signs. No advertising signs of any nature shall be permitted.
- F. Bed and breakfast homes shall be located in a structure which was originally constructed as a dwelling.
- G. The use shall contain only one (1) kitchen facility. Meals served on the premises shall be only for overnight guests and residents of the facility.
- H. The use of such a facility by any one patron shall be limited to no more than 15 days per 60-day period.

Section 8.9 Boarding Houses

- A. The maximum number of guest bedrooms for each proposed boarding house shall be four (4) unless the applicant can demonstrate that the original floor plan of the structure contained a larger number of bedrooms, in which case, the original number of bedrooms may be approved as allowable guest lodging. In no case shall the number of guest rooms exceed eight (8).
- B. The boarding house shall be operated by a resident manager.
- C. The use shall be located in a structure which was originally constructed as a dwelling.
- D. The use shall contain only one (1) kitchen facility. Meals served on the premises shall be only for overnight guests and residents of the facility.
- E. All resident parking shall be to the rear of the home. There shall be one parking space per room of residency.

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- F. Signs for boarding houses shall be limited to one ground sign per establishment. Such sign shall not exceed five (5) square feet and shall not be illuminated and shall be an identification sign only. Location of sign shall be governed by Chapter 11 Signs. No advertising signs of any nature shall be permitted.

Section 8.10 Cemeteries

- A. Tombstones, crypts, monuments, and mausoleums shall be located a minimum of 20 feet from any side or rear lot line and at least 30 feet from a street right-of-way.
- B. Adequate off-street parking/circulation facilities for funeral procession shall be provided.
- C. Site plans shall also include entrances and exits, pattern of internal circulation and storm drainage.
- D. Cemeteries shall have direct access to a major or minor thoroughfare.

Section 8.11 Child Care Centers

- A. Daycares and preschools shall be located on lots which provide ample outdoor play area. A fenced area in the rear yard or side yard a minimum of 2,500 square feet shall be provided. Fences shall be a minimum of six (6) feet in height. Daycares and preschools located adjacent to parks are exempt from this provision.
- B. All play equipment shall be located in the fenced area. Front yards shall not be used as playground areas.
- C. Operating hours shall be limited to 6:00 am and 7:00 p.m. (This requirement applicable only to day care operations in residential zoning districts.)
- D. Services shall not be provided for any client on a continuous 24-hour basis.
- E. Minimum parking shall be one (1) space per facility vehicle, (1) space per employee, plus two (2) per 15 children. Also, at least one off-street passenger loading and unloading space separate from the parking area, plus adequate turnaround area shall be provided. Minimum parking for in-home daycares may be reduced to one (1) space per facility vehicle, one (1) space per employee, and two (2) additional spaces.
- F. There may be one (1) freestanding monument sign erected per public street frontage. The sign(s) for centers located in Non-Residential Zoning Districts shall not exceed three (3) feet in height and fifteen (15) sq. ft. in sign area when located within ten (10) feet of the right-of-way. When located more than ten (10) feet from the right-of-way, the sign(s) shall not exceed five (5) feet in height and fifteen (15) sq. ft. in sign area. The sign(s) for centers located in Residential Zoning District shall not exceed four (4) sq. Ft.
- G. All required State, Federal, and/or County licenses and permits shall be obtained by the operator of the day care center.

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- H. Facilities permitted in any residential district shall maintain the character and appearance of a residential use.
- I. Child Care Facilities must meet the standards provided by the Child Day Care Commission. Evidence that Commission requirements are met shall be presented to the Zoning Administrator prior to any Certificate of Zoning Compliance being issued.

Section 8.12 Drinking Places (Alcoholic Beverages)

- A. No bar, nightclub, or dance hall shall be permitted within 100 feet of any one- or two-family primary residential dwelling unit, church, or other civic use building, nor shall a drinking place be located within 100 feet of any other drinking establishment. The restriction of this subsection is not applicable within the C-B zoning district for structures which front Main Street.
- B. Flashing lights or fluttering devices designed and used to attract attention are not permitted.
- C. Music or other amplified sound shall not be audible beyond the property line.
- D. Plans shall include hours of operation to ensure compatibility to neighboring businesses.

Section 8.13 Drive-Throughs

- A. Drive-throughs and service windows shall not front on the primary public street.
- B. Drive-through services are only permitted within NC and HB Zoning Districts.
- C. Drive-throughs located on the side of a building shall be limited to no more than two lanes, except for Financial Institutes (NAICS 52) in a HB District which are subject to the following requirements:
 - 1. The drive-through canopy must be recessed from the front façade
 - 2. Multi-lane drive-throughs are limited to four lanes including the ATM lane.
 - 3. A landscaped island must separate the drive-through and stacking lanes from parking areas and driveways. The landscaping is subject to the standards of Chapter 7 of this ordinance. The landscaping shall screen the drive-through and stacking lanes from view from abutting properties with no openings greater than 4 feet.
 - 4. At least 75% of the landscaping shall be evergreens. A landscaping plan is required and must be approved by Technical Review Committee or the Planning Board.
 - 5. Adequate stacking space for drive-through lanes must be provided and approved by the TRC.
 - 6. When located on a corner lot, multi-lane drive-throughs shall not be located on the exterior building side which fronts the secondary public street.
- D. Loudspeakers shall be located at least 50 feet from any pre-existing residential structure located in a residential district.

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- E. Stand-alone ATMs may be permitted as accessory uses (i.e., in a shopping center parking lot).
- F. Vehicle storage for drive-throughs shall be located outside of and physically separated from the right-of-way of any street. This area shall not interfere with the efficient internal circulation of traffic on the site, adjacent property, or adjacent street right-of-way.
- G. Drive-through window facilities shall be screened from off-site view by Type B landscaping.

Section 8.14 Duplexes (Two-Family Attached Dwellings)

- A. Developments consisting only of duplexes are not permitted on lots greater than three (3) acres.
- B. Duplex developments must be visually compatible with the surrounding neighborhood.
- C. Duplexes on corner lots shall be designed in a way that each unit fronts on a different street.

Section 8.15 Electronic Gaming Operations

An electronic gaming operation is any business enterprise, whether as a primary or an *accessory use*, where persons utilize electronic machines, including but not limited to computers and gaming terminals, to conduct *games of chance*, including sweepstakes, internet cafes, and internet business centers and where cash, merchandise or other items of value are redeemed or otherwise distributed, whether or not the value of such distribution is determined by electronic games played or by predetermined odds. This does not include any lottery approved by the State of North Carolina.

- A. No Electronic Gaming Operation shall be located within five hundred (500) feet of a church, school, daycare, community center or any residentially zoned property, nor shall an electronic gaming operation be located within one thousand (1000) feet of any other such use. These distances shall be measured from the property line of the proposed facility to the property line of a church, school, daycare, community center, any residentially zoned property, or the property line of any other electronic gaming establishment.
- B. Activities taking place on the premises shall be confined to the area inside the structure and shall not be visible from the street right-of-way. No outdoor loitering shall be permitted.
- C. The maximum number of gaming computers, stations, machines and/or terminals within an electronic gaming establishment is twenty (20).
- D. All electronic gaming computers, stations, machines and/or terminals shall be visible from the main entrance of the establishment.

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- E. Electronic Gaming Operations approved under this Special Use Permit shall be supervised and operated by a person over 21-years of age who:
- has not been convicted or plead guilty or no contest to any criminal offense involving moral turpitude, gambling or the unlawful possession, sale, distribution, or use of any alcoholic beverage or controlled substance within the five (5) years next preceding the date of the application for a Special Use Permit; and
 - is a resident of North Carolina or does have a registered agent in North Carolina who is authorized to accept service of process.
- F. Neon or flashing lights or fluttering devices designed and used to attract attention are not permitted.
- G. Amplification of sound directed outside of the building used by the establishment is not permitted.
- H. There shall be one (1) paved parking space for every terminal, machine, and computer or one (1) space per one hundred (100) square feet of total floor area, whichever is greater; and one (1) paved parking space per employee. Designated parking spaces shall not include parking spaces allocated to other businesses within a combined development.
- I. The Electronic Gaming Operation shall comply with all applicable laws of the State of North Carolina.

Section 8.16 Elementary and Secondary Schools.

New construction or expansions of Elementary and Secondary Schools require a major site plan to be submitted for approval. Sites for new public schools, facilities may be reserved as part of a subdivision plan approval in accordance with the procedures described in NCGS 160A-372(c). The Town may require street improvements necessary only for safe ingress or egress of school sites, consistent with NCGS 160A-307.1. As required by NCGS 160A-383(d), the Town shall not deny a request for approval of a public-school site plan based on the level of service of a road abutting or near that school site.

Section 8.17 Family Campgrounds

- A. Minimum lot size: 5 acres
- B. All spaces for camping and recreational vehicles shall be located at least 100 feet from any adjoining lot line.
- C. There shall be a minimum of one recreational area which is accessible to all guests; the size of such shall not be less than ten percent (10%) of the gross site area.
- D. Interior roads shall be a minimum width of 24 feet in width and shall access a paved road.
- E. Each recreational vehicle parking area shall be connected to an approved water supply system which provides an accessible, adequate, safe, and potable supply of water.
- F. An adequate and safe sewer system shall be provided in all recreational vehicle parking areas.

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- G. Type A landscaping shall be provided where the use adjoins residentially zoned property.
- H. A central service building containing all necessary toilets, bathhouses and other plumbing fixtures specified in the most current edition of the North Carolina State Plumbing Code, as amended, shall be provided. The service building shall be conveniently located within a radius of 300 feet to spaces which it serves.
- I. The storage, collection and disposal of trash and refuse shall comply with all applicable town, county and state regulations.
- J. Spaces shall be rented by the day. No person, recreational vehicle, or tent may occupy the campground for a period in excess of 30 days. A register of all occupants, the space occupied, and the time of arrival and departure shall be maintained.
- K. Signs shall be limited to one free-standing sign. Such sign shall
 - not exceed five (5) square feet
 - indirect lighting only
 - identification sign only

Section 8.18 Family Care Homes

In accordance with NC General Statute Chapters 122C, 131D, and 168.

This section applies to adult care homes, child or adolescent care homes, family care homes, group homes, halfway houses, mental health care homes, and residential care homes. These uses are deemed residential uses and are permitted in all residential districts subject to the following conditions:

- A. No more than six (6) residents other than the homeowner and the homeowner's immediate family are permitted to live in a Family Care Home.
- B. A Family Care Home must be licensed with the NC Department of Health and Human Services Division of Facility Services before operating.
- C. No Family Care Home may be located within a one-half (1/2) mile radius of any other residential care home.
- D. No exterior signage is permitted.
- E. No lockdown, violent, or dangerous residents.
- F. Only incidental and occasional medical care may be provided.

Section 8.19 Flea Markets

- A. Flea markets shall provide sanitary conditions at all times and must comply with the requirements of the Rowan County Health Department.

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- B. Flea market operators shall maintain at all times a current list of vendors that are renting space within the flea market area. Such list shall include name, address and telephone number of the vendor, location (or booth) at which vendor is located, and type of products or material being sold by vendor. Such information shall be kept by the flea market operator for a period of 1 one year. The flea market operator shall make such list available to inspection by the Code Enforcement Officer as well as law enforcement agencies at any time during hours of operation.
- C. A flea market operation shall be within an enclosed building as the principal building; however, outdoor spaces on the same property as the principal building may be utilized as part of the flea market.
- D. Outdoor spaces shall only be allowed to operate 3 days a week.
- E. For each display area or sales area, one off-street parking space shall be provided for the exhibitor. In addition, two off-street parking spaces shall be provided per each display area or sale area.

Section 8.20 Golf Courses and Driving Ranges

- A. No green shall be located within 150 feet of any property line.
- B. Lighting shall be so shielded as to cast no direct light upon adjacent property. Driving ranges associated with golf courses shall not be lighted for night use.
- C. No building other than residential structures shall be located within 100 feet of any property line.

Section 8.21 Heliports

- A. Airport/heliport developments shall meet the requirements of the FAA.
- B. In addition to site plans required, a full master plan including plans or information detailing flight approach patterns and noise cones shall be presented. All plans shall be drawn by a registered professional qualified to design airports.
- C. Airports/heliports shall be so located and designed as to minimize disturbance of residential areas located outside of approved noise cone contours.
- D. No structures, runways, taxiways, tiedown areas, parking lots, towers, beacons, etc., shall be located within 50 feet of any property line.
- E. No petroleum storage tanks or refueling facilities shall be located within 100 feet of any property line.
- F. All outdoor lighting except navigational, safety, and other lighting related to aircraft operations, shall be so designed as to not disturb adjoining properties.

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Section 8.22 Home Occupations

Customary home occupations may be established in any principal dwelling unit. The following requirements shall apply in addition to all other applicable requirements of this Ordinance for the district in which such principal dwelling unit is located:

- A. The home occupation shall be clearly incidental and subordinate to the residential use of the dwelling and shall not change the residential character of the dwelling. No exterior evidence of the presence of a home occupation shall be allowed other than a sign not exceeding four (4) sq. Ft.
- B. No outside storage of materials or equipment shall be allowed in connection with the home occupation.
- C. Use of the dwelling for the home occupation shall be limited to 25 percent of the total floor area or 500 square feet, whichever is less, of the principal residential structure.
- D. Residents of the dwelling plus a maximum of one (1) non-resident may be engaged in the customary home occupation or otherwise report to work at the dwelling.
- E. No display of products shall be visible from any adjoining streets or properties. Sales of products are limited to those made or reconditioned on the premises and those which are necessary to the service being provided.
- F. A home daycare may be operated as a home occupation if there are three (3) or less unrelated children, handicapped persons, or senior citizens cared for in the home. Persons who are related by blood or marriage to the attendant adult shall not be counted as patrons of the daycare.
- G. No external alterations inconsistent with the residential use of the dwelling shall be permitted.
- H. Only vehicles used primarily as passenger vehicles (e.g., automobiles, vans, and pick-up trucks) shall be permitted in connection with the conduct of the customary home occupation. Off-street parking shall meet the standards and requirements as set forth in Chapter 8 of this ordinance.
- I. The home occupation shall not increase the traffic, noise, electrical interference, glare or other light emission, dust, smoke, or odor, which is normally found in its vicinity.
- J. Customary home occupations may be in operation at any time between the hours of 8:00 A.M. and 9:00 P.M.

Section 8.23 Manufactured Homes (on individual lots)

- A. Manufactured homes that are on individual lots not within a Manufactured Home Park shall be multi-sectional. Single-wide manufactured homes shall not be permitted on individual lots.
- B. The manufactured home shall conform to the construction standards of the United States Department of Housing and Urban Development (HUD) and bear the HUD tag and/or data plate.
- C. The manufactured home shall have the towing apparatus, wheels, axles, and transporting lights removed.

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- D. The Manufactured Home shall be set up in accordance with the standards established by the North Carolina Department of Insurance.
- E. A continuous masonry foundation shall be installed under the perimeter, unpierced except for required ventilation and access.
- F. A permanent front porch of at least 32 square feet in area shall be constructed within 12 inches of the floor elevation and be fully underpinned to completely conceal area beneath porch and unit. All secondary entrances and exits to the Manufactured Home shall also have concrete steps or similar approved steps.
- G. The front of the manufactured home shall be parallel to the front property line, except on corner lots.

Section 8.24 Manufactured Home Parks (as a Special Use only)

This section sets forth the standards required for all new Manufactured Home Parks and expansions of existing Manufactured Home Parks.

- A. Minimum site area in acres: 5
- B. Minimum number of Manufactured Home Spaces: 5
- C. Maximum number of Manufactured Home Spaces per acre: 8
- D. Minimum Lot and/or parcel width for site at front Building Line in linear feet: 100
- E. Maximum density: 5 units per acre
- F. Minimum Manufactured Home Space width: 60 feet
- G. Maximum number of Manufactured Homes per Manufactured Home Space: 1
- H. Minimum number of Parking Spaces per Manufactured Home Space (located on each space): 2
- I. Minimum number of landings/patios per Manufactured Home Space (located on each space): 1
- J. Minimum area of porch/entrance landing per Manufactured Home Space (sq. ft.): 32
- K. Hard surface walk required to connect each porch/entrance landing to Parking Space (minimum three (3) ft. width: Yes
- L. Street paving required in conformance with DOT standards for Minor Street: Yes
- M. Maximum slope permitted on site: 3:1
- N. Maximum number of driveways connecting to Streets (other than Private Street): 0

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- O. Maximum number of Private Street connections to Street per Manufactured Home Park: 2
- P. Minimum distance between Private Street connections to Street (linear ft.): 150
- Q. Maximum length of dead end and/or cul-de-sac Private Street (linear ft.): 800
- R. Minimum turning circle (paved) diameter at end of each dead end and/or cul-de-sac Private Street (linear ft.): 70
- S. Manufactured Home Park Identification Sign conforming to Article X required: Yes
- T. Minimum separation between entrance/exit point of Private Street to Street and nearest Street intersection (linear ft.): 150
- U. Streetlight required at all Private Street intersections: Yes
- V. Water supply and sewage disposal facilities required: Yes
- W. Private Street names required (subject to approval): Yes
- X. Maximum number of Manufactured Home Spaces with vehicular access from oneway Private Streets: 20
- Y. Garbage collection and disposal by owner/operator in accordance with applicable codes required: Yes
- Z. Heating oil and/or LP gas tanks with foundation permitted: Yes
- AA. Minimum capacity of heating fuel tanks (gallons): 150
- BB. Wood burning heat sources permitted: Yes
- CC. Screening of firewood required (no minimum height): Yes
- DD. Minimum separation between each unit (linear ft.): 30
- EE. Vehicle Speed Control devices required: Yes
- FF. Number of accessory buildings per Manufactured Home space: 1
- GG. All Manufactured Homes meet HUD construction standards and bear HUD tag and/or data plate: Yes
- HH. Towing apparatus removed from all Manufactured Homes: Yes
- II. Skirting shall be of material acceptable for exterior construction that will not support combustion. Skirting material shall be durable and suitable for exterior exposures. Any wood framing used to support this skirting shall be approved moisture resistant treated wood. Skirting shall be continuous and unpierced except for ventilation. Skirting manufactured specifically for underpinning shall be installed in accordance with the manufacturer's specifications. Skirting shall be kept in good repair.

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JJ. Each manufactured home park shall have a minimum of five percent of the total area set aside and developed for recreational purposes. The required recreation space may include, but not be limited to a swimming pool, picnic areas with tables, basketballs goals with paved play areas, and playground(s) with play equipment. Exterior areas for common passive or active recreation use; I i.e., play areas for children, outdoor seating areas and the like where the facilities are available for common use by tenants and visitors. Active recreation space shall be at least 20 feet from any residential unit. If a swimming pool is provided, it shall be separated from other uses by a fence having a gate which is capable of remaining closed.

KK. Accessory structures may be permitted for such uses as laundries, offices, recreation, storage, etc. However, the total gross square feet of all building area shall not exceed 5 percent of the total approved park area.

LL. A fulltime on-site manager shall be provided for parks having at least 75 sites. An onsite, permanent (not manufactured) office shall be provided for the manager.

MM. The collection of trash and garbage and their disposal shall be provided for in such a manner as to always maintain a clean and orderly appearance. Plans to meet this requirement shall be submitted as part of the application for a special use permit.

Section 8.25 Microbreweries and Craft Distilleries

- A. Areas for demonstration, education, retail sales or tasting shall be included.
- B. Excluding areas for demonstration, education, retail sales, or tasting, a microbrewery shall not exceed 7,000 square feet in area.
- C. Open storage of materials shall not be permitted.
- D. No Drive Through is permitted.
- E. A microbrewery shall have an off-street or alley loading space.

Section 8.26 Mini-Warehouses

- A. Minimum tract size – 2 acres
- B. Mini-warehousing facilities shall comply with Chapter 13 commercial building design guidelines
- C. All storage compartments shall front on an interior drive and shall not be visible from street
- D. Outdoor storage shall be limited to ten percent (10%) of the area of the zoning lot and shall be maintained on a designated paved surface.
- E. The facility shall be enclosed with a perimeter fence or wall of at least eight (8) feet in height and shall be always maintained in sound condition.

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- F. Landscaping:
- Type A buffer around perimeter of development,
 - All areas not paved, or buildings shall have turf/grass or Technical Review Committee approved ground cover, gravel parking areas, gravel internal drives and aisles are not permitted,
 - All off-street parking including exits, entrances, and maneuvering and parking areas shall be paved with asphalt or concrete.
- G. Minimum aisle width between buildings shall be 25 feet, if bollards are used width shall be measured between bollards.
- H. Minimum turning radius for truck traffic shall be accommodated between mini-warehousing buildings
- I. Mini-warehouse facilities shall be used only for dead storage of materials or articles and shall not be used for assembly, fabrication, processing, or repair.
- J. Outdoor storage is a special use in the HB, LI, and HI districts. Outdoor storage areas shall be located behind warehouse buildings. Outdoor storage shall be limited to ten percent (10%) of the area of the zoning lot and shall be maintained on a designated paved surface. The Technical Review Committee, Planning Board, and Town Council may require additional screening and buffer requirements as reasonable conditions of approval.
- J. The storage of junk is prohibited.

Section 8.27 Mining and Quarrying (Extraction of Earth Products)

In addition to the information required for all applications for approval of Special Uses, the following shall be submitted as part of the application.

Three copies of a Site Plan, prepared by a North Carolina Registered Land Surveyor or Engineer, which shall contain the following:

- A. North Point, scale, and date.
- B. Extent of area to be excavated or mined.
- C. Locations, width and elevation of all easements and rights-of-way within or adjacent to the extraction site.
- D. Location of all existing or proposed structures on site.
- E. Location of all areas on the site subject to flood hazard or inundation as shown on flood maps or soils map.
- F. Location of all water courses on the site, including direction of flow and normal fluctuation of flow.
- G. Actual field topography survey at a contour interval of five feet based on mean sea level datum.

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- H. Proposed handling and storage areas for overburden, byproducts, and excavated materials.
- I. Proposed fencing, screening, and gates; parking, service and other areas.
- J. Any areas proposed for ponding.
- K. Access roads to the site, as well as on-site roads, with indication of surface treatment to limit dust. Sight distances on all roads used for access to the site shall be shown.

Operations Plan, which shall include:

- A. The date proposed to commence operations and their expected duration.
- B. Proposed hours and days of operations.
- C. Estimated type and volume of extraction.
- D. Description of method of operation, including the disposition of topsoil, overburden, and byproducts.
- E. Description of equipment to be used in the extraction process.
- F. Any phasing of the operation and the relationship among the various phases.
- G. Operating practices which will be followed to comply with the performance standards applicable to the operation.

Rehabilitation Plan, which shall include:

- A. A statement of planned rehabilitation of the excavated land, including detailed methods of accomplishment and planned future use of the rehabilitated land.
- B. A map showing the final topography, after rehabilitation, to the same scale as the Site Plan; it shall also depict any water areas and methods for preventing stagnation and pollution thereof, landscaping and ground cover proposed to be installed and the amount and type of backfill to be employed, if any.
- C. A phasing and timing plan, related to the phasing and timing portion of the Operations Plan, showing the progression of the rehabilitation and the date when it will be complete.
- D. The method of disposing of all equipment, structures, dikes, and spoil piles associated with the operations.
- E. The name, address and signatures of landowners and applicants
- F. A written legal description of survey of the property, prepared by a North Carolina Registered Land Surveyor or Engineer.

The following standards shall be used in evaluating an application for a permit to conduct extraction of earth products:

- A. All operations associated with extraction shall conform to the following performance standards:

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- B. Direct illumination resulting from the operation shall not fall upon any land not covered by the application.
- C. Equivalent sound levels at the boundaries of the extraction site shall not exceed the following standards:
- between 7:00 a.m. and 7:00 p.m. 68 dBA
 - between 7:00 p.m. and 7:00 a.m. 58 dBA
- D. Vibration levels at the boundaries of the extraction site shall not exceed the following standards:

Maximum Peak Particle Velocity:

steady state 1.0 inches/second

impact 2.0 inches/second

NOTE: The maximum particle velocity shall be the product of 2 times the frequency in cycles per second times the sum of 3 mutually perpendicular displacement components recorded simultaneously. For purposes of this Ordinance, steady state vibrations are vibrations which are continuous, or vibrations in discrete impulses more frequent than 60 per minute. Discrete impulses which do not exceed 60 per minute, shall be considered impact vibrations. Maximum air blast vibration, measured at the lot lines of the zoning lot containing the extractive use, shall be 125 decibels on the linear scale.

The Rehabilitation Plan shall be referred to the Rowan County Soil and Water Conservation District for review and recommendation, which shall not be binding upon the Town Council, in particular regarding the landscape material specified, the planting and maintenance proposed to insure continuous growth and development, and the acceptability of the proposals for the handling of lakes, ponds, etc.

The permanent roads, defined as those to be used in excess of one year, within the excavation site shall be surfaced with a dust-free material such as soil cement, bituminous concrete or Portland Cement concrete from the nearest public road to the yard area. Also, all permanent roads located within 300 feet of residentially zoned and shall be treated the same.

Roads other than permanent roads shall be treated with dust inhibitors, to be specified in the Operations Plan, which will reduce to a minimum the generation of dust from the road surfaces as a result of wind or vehicular action. Properly operated water wagons shall be an acceptable method of dust inhibition.

Where the proposed extraction shall take place within 300 feet of a dwelling, school, church, hospital, commercial or industrial building, public building, or public land, a security fence at least six feet high shall be installed.

Spoil piles and other accumulations of byproducts shall not be created to a height more than forty feet above the original contour and shall be so graded that the vertical slope shall not exceed the material's natural angle of repose.

The Operations Plan and the Rehabilitation Plan shall be coordinated so that the amount of disturbed land is kept to the absolute minimum consonant with good practices and so that rehabilitation proceeds in concert with extraction.

The Town Council shall require, for all extractive uses, a performance guarantee to ensure that the provisions of the Rehabilitation Plan are met. Such performance guarantees shall be in a form approved by the Town. The amount of such guarantee shall cover the cost of rehabilitation. The applicant's engineer

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shall certify the costs of rehabilitation on a per acre basis, if the cost does not exceed the amount posted with the State of North Carolina. If the rehabilitation costs exceed the amount required by the State, then the difference shall be made up in a bond to the Town of China Grove.

Section 8.28 Mixed Residential Developments

- A. Minimum Lot Size: two (2) acres
- B. Minimum Lot Frontage: one hundred (100) feet
- C. Yard regulations may be modified for a PUD, provided that, for such development as a whole, excluding streets and easements, but including required buffers, parks and other permanent open spaces, there shall not be less than the required area per dwelling unit for the district in which such development is located.
- D. Access to the development site shall be from a Town or State maintained road. The applicant shall provide evidence that the North Carolina Department of Transportation has approved preliminary plans as submitted. The developer may be required to provide turn lanes and other off-site transportation improvements to insure safe and adequate access.
- E. Site Plans shall provide use and location of all buildings with dimensions and ground area thereof.
- F. Homeowners' Association. The developer shall submit a draft of the Articles of Incorporation for the Homeowners' Association. The Articles of Incorporation shall provide that all owners of property within the development share automatic membership rights and assessment obligations for the maintenance of commonly owned areas (including recreation areas, open space, private streets, etc.). The automatic membership rights and assessment obligations of all owners of property within the mixed residential development shall be so covered by covenants running with the land and other contractual provisions for liens against the individual properties and legally enforceable personal obligations on the part of the individual property owners within the development. Before granting a Conditional Zoning, the Articles of Incorporation shall be approved by the Town Attorney.
- G. Common space shall be maintained at a minimum of twenty (20%) percent of the total area of the development.
- H. Parking areas, driveways and roadways shall have a paved surface and all parking areas, and traffic lanes shall be clearly marked.
- I. Type A Buffer shall be required adjoining residentially zoned properties.
- J. There may be one (1) freestanding monument sign erected per public street frontage. The signs(s) shall not exceed three (3) feet in height and fifteen (15) sq. ft. in sign area when located within ten (10) feet of the right-of-way. When located more than ten (10) feet from the right-of-way, the sign(s) shall not exceed five (5) feet in height and fifteen (15) sq. ft. in sign area.
- K. Solid waste storage areas, as an accessory use, shall be required and confined in an enclosed area that is screened on all sides.

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- The enclosure shall be large enough to confine waste items and containers from view of the public, roadways, and adjacent properties. Enclosures must be located within the boundaries of the property they serve. Under no circumstances are they to be placed on Town or State rights-of-way.
- Enclosures are to be constructed of materials that are neutral in color and compatible with other building materials in the development. Screening of Solid Waste Storage Containers shall begin at ground level with no open space between the ground and bottom of the screening material and shall be a minimum of six (6) feet tall with a door or gate. Single and two (2)-family dwellings are excluded from this requirement.
- Solid waste storage containers shall be maintained in an orderly and neat fashion meaning that no condition shall exist which may cause a fire or safety hazard or is a public nuisance.

Section 8.29 Nursing and Residential Care Facilities

- A. Minimum parking standards shall provide one (1) space per each employee of the largest working shift, plus one (1) space per each three (3) clients.
- B. Driveway access to accessory structures shall be through the main entrance of the facility.
- C. Structures shall be separated by at least twenty (20) feet and arranged to provide for adequate on-site vehicular and pedestrian traffic.
- D. No single building shall be greater than forty thousand (40,000) sq. ft. if located within five hundred (500) feet from an adjacent residentially zoned lot. This distance shall be measured from the closest point of the structure in any direction.
- E. There may be one (1) freestanding monument sign erected per public street frontage. The signs(s) shall not exceed three (3) feet in height and fifteen (15) sq. ft. in sign area when located within ten (10) feet of the right-of-way. When located more than ten (10) feet from the right-of-way, the sign(s) shall not exceed five (5) feet in height and fifteen (15) sq. ft. in sign area.
- F. All state and county licensing and inspection shall be maintained at all times.

Section 8.30 Outdoor Storage (non-residential)

- A. All outdoor storage shall be located in the rear yard only.
- B. All outdoor storage, including truck storage, shall be screened from view of the street with an opaque screen.

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Section 8.31 Parking of Recreational and Commercial Vehicles

- A. For purposes of this Ordinance, a recreational vehicle shall not be deemed a dwelling unit and the usage of a recreation vehicle for living, sleeping, or housekeeping purposes and the connection of such vehicle to utility services (other than for periodic maintenance and/or repair purposes) shall be prohibited unless the vehicle is located in a camping and recreational vehicle park so designed to accommodate recreation vehicles.
- B. All domestic and recreational vehicles shall be located in established parking areas on residential building lots. Parking is prohibited in designated yard areas and public rights-of-way.
- C. No more than 6 vehicles may be parked or stored on any residential lot for any period exceeding 48 hours. Vehicles stored within an entirely closed structure which meets the NC Building Codes shall not be counted when determination of vehicles is made.
- D. Recreation vehicles may be maintained by the owner of the residential lot in a stored position (no slide-outs extended, or pop-ups opened). Recreational vehicles may be opened for general maintenance for a period not exceeding 48 hours, weather permitting. Storage of recreational vehicles shall be in a designated parking area and shall not be permitted in a front-yard area, except within an established driveway/parking area. (Parking is not permitted in designated front-yard areas.)
- E. Commercial vehicles with more than two (2) axles shall not be parked in a residential zoning district on a lot of less than one acre. This requirement shall not be interpreted to prohibit vehicles from loading and unloading household goods in any residential district for a period of up to 24 hours.
- F. No residentially developed lot may be used as the base of operation for any freight hauling truck.

Section 8.32 Pet Care and Veterinary Services (outdoor kennels)

- A. No outdoor containment of animals shall be located less than 250 feet from any residentially zoned property and 50 feet from any other adjacent property line.
- B. Kennel areas must be surrounded by an opaque fence not less than six (6) feet in height and enclosed as to prevent escape.
- C. Kennels shall be designed to effectively buffer all noise audible to surrounding properties.
- D. The kennel and surrounding area shall be cleaned of pet waste, uneaten feed, and other waste, and shall be always kept in a neat and sanitary condition to preclude odors and aesthetic nuisances.
- E. One (1) on-premises sign shall be permitted. The sign shall be no larger than nine (9) sq. ft. unless approved by the Zoning Administrator.

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Section 8.33 Produce Stands

- A. A permanent produce stand shall be allowed as an accessory use to an agricultural use only. All produce sold shall be grown on a lot under the same ownership as the lot upon which the produce stand is located. All other produce stands shall be considered temporary uses and shall follow the special requirements for temporary uses.
- B. A produce stand shall not be located in a street right-of-way.
- C. A produce stand shall not be located closer than 10 feet to any side lot line unless a greater setback is required for the zoning district in which it is located.
- D. Signs for a produce stand shall not be illuminated, nor have flashing lights, nor shall they exceed four (4) square feet in area. Off-premises signs are not permitted.
- E. During the times of the year in which the produce stand is not in operation, the stand shall be properly closed and maintained.

Section 8.34 Professional Recovery Facilities

- A. No such use shall be established within one-half mile of another such use, congregate living facility, or family care home.
- B. Outdoor activity areas shall be located behind the front building line in the rear yard or side yard only. If located in the side yard, a minimum side yard setback of ten (10) feet shall be observed. On corner or through lots, a minimum of twenty (20) feet setback from the public right-of-way line shall be required.
- C. All outdoor activity areas shall be surrounded by a fence or wall at least six (6) feet in height.
- D. Outdoor activities shall be permitted only between the hours of 8:00 am and 10:00 pm.
- E. No sign identifying the facility shall be permitted beyond the name of the facility on the mailbox.
- F. At the time of the Special Use request, evidence shall be provided indicating adequate measures to prevent the unauthorized exit of clients.
- G. The applicant shall prove the ability to meet and, if approved, maintain, all required governmental
- H. licensure requirements of any applicable state governmental body responsible for licensing operations of the facility.

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Section 8.35 Recyclable Material Wholesalers (includes scrap metal, junkyard, scrap processor, auto wrecking yard)

- A. Minimum Lot Size: five (5) acres.
- B. The site shall have access to a thoroughfare.
- C. No such activities shall be permitted within two hundred (200) feet of any residential district.
- D. Shall not be located within a Special Flood Hazard Area (as defined in Section 7.17.6), wetland or within a water quality watershed area.
- E. No materials shall be stored closer than thirty (30) feet from the zoning lot lines.
- F. No materials shall be permitted to accumulate outside of screened areas or within any public right-of-way.
- G. Storage of combustible materials shall be in accordance with NFPA standards. The applicant shall submit plans for storage of combustible materials to the Rowan County Fire Marshal for review and comment, with a copy to the China Grove Fire Department. A statement of compliance with NFPA standards shall be submitted along with the application for Special Use Permit. In no case, shall combustible materials be permitted within 30 feet of a zoning lot line.
- H. Plans for handling hazardous materials shall be submitted along with the application for a Special Use Permit which indicates compliance with all applicable regulations. These plans shall be reviewed by the China Grove Fire Department and the Rowan County Health Department.
- I. Wrecked vehicles or other junk or scrap materials shall be stored at a height no greater than eight (8) feet.
- J. Screening shall be required which completely screens from view the stored items. Such screening shall be a durable wall or fence at least eight (8) feet in height, and junk shall not be stacked above the fence. Walls or fencing shall not contain advertising, lettering or any form of signage and shall be maintained in sound condition at all times.
- K. A Type A buffer shall be required around the perimeter of all sides of the facility.
- L. Any wholesale used auto parts operation shall take place completely within an enclosed building.

Section 8.36 Rural Family Occupations

A rural family occupation is an accessory use, restricted to limited non-residential activities in a separate detached structure or within a residential structure which exceeds home occupation allowances, located on a residential lot, which is clearly subordinate to the principal use of the land.

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- A. Minimum site size - 2 acres. No more than one-quarter (1/4) acre or twenty-five percent (25%) of the residential lot, whichever is less, shall be used for the rural family occupation.
- B. The rural family occupation shall be clearly incidental to the residence and may be conducted within an accessory building, however, it shall be contained in the rear yard area (including parking) and shall meet the side and rear setbacks required for a principal structure within the zoning district.
- C. The occupation activity may take place either in the principal dwelling or a separate building(s).
- D. The owner must reside on the property on which the occupation is located. No more than two (2) persons who do not reside on the premises shall be employed at the occupation.
- E. If a separate building is used in the occupation it must meet the accessory structure standards in Section 4.3.
- F. If located in a separate structure from the principal dwelling, then the structure shall meet the principal structure setbacks for the zoning district.
- G. Rural family occupations shall be limited to the following non-residential uses or the like thereof, as determined by the Zoning Administrator:
 - 1. Artisan studio
 - 2. Finance and Insurance office
 - 3. Real Estate Agent office
 - 4. Legal, Accounting, Architectural, Design, and Management Services
 - 5. Caterers (off-premises)
 - 6. Piano or music teacher
 - 7. Tutoring
 - 8. Therapist
 - 9. Seamstress
- H. The rural family occupation shall be clearly limited to those uses that do not have off-site visual or other impacts, including but not limited to any noxious fumes, odors, traffic congestion or other nuisance factors.
- I. A minimum of a 20' buffer shall be required when adjoining a Residential Zoning District. Buffers are not required when adjoining Commercial or Industrial Districts.
- J. No outside storage permitted.
- K. Off-street parking shall meet the standards and requirements as set forth in Section 8 of this ordinance.

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- L. Rural family occupations may be in operation at any time between the hours of 8:00 A.M. and 9:00 P.M.
- M. No heavy equipment storage permitted.
- N. No more than one (1) identification sign permitted. The sign shall not be luminated and shall not exceed four (4) sq. ft.

Section 8.37 Solar Electric Generation

A. Standards for Solar Electric Generation Facilities 6,000 square feet or smaller in size:

- 1. Screening shall be required for solar facilities adjacent to all rights-of-way and properties zoned R-P, R-S, R-T, R-M, RMH, and PUD. This screening shall consist of a double row of evergreen plants, a minimum of 6' in height at installation, with 5' spacing between the centers of the main trunks of the plants. Plants shall be specified according to the standards of Section 11.4.1.
- 2. Rooftop solar facilities in R-P, R-S, R-T, R-M, and RMH districts may be allowed up to a 6,000sf maximum, but on-ground installations shall be limited to half the square footage of the footprint of the residential structure on the lot.
- 3. Solar facilities in N-C, H-B, L-I and H-I districts shall only be allowed as rooftop installations.

B. Standards for Solar Electric Generation Facilities greater than 6,000 square feet in size:

- 1. Minimum Lot Size: ten (10) acres for ground-mounted solar electric facilities in the R-P district. No minimum lot size LI and HI districts; however, any such installations in those districts are limited to building rooftops only.
- 2. Minimum Setbacks: a minimum perimeter setback of fifty (50) feet
- 3. Solar Collector Panels shall be located and situated so glare does not create a distraction or nuisance to traffic or abutting residential properties.
- 4. Electric solar energy components shall have a UL listing and be designed with anti-reflective coating(s).
- 5. No structure shall exceed a height greater than ten (10) feet. This is measured from the base of the structure to its highest point.
- 6. Facility shall be enclosed by a fence of not less than eight (8) feet in height.
- 7. No outside storage shall be permitted.
- 8. Site Maintenance Plan - The applicant shall be required to submit a plan that will show scheduled maintenance of the property (trimming of vegetation, routine maintenance of the equipment etc.)

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9. Decommissioning Plan - The applicant shall be required to submit a plan defining condition upon which decommissioning will be initiated. Notice shall be provided to the Zoning Administrator when the facility is placed out of service. Facilities which are not operating for a period of six (6) months or more shall be removed by the property owner within one-hundred-twenty (120) days. Furthermore, a form of surety equal to one hundred percent (100%) of the cost of decommissioning under the plan, as estimated by a North Carolina licensed engineer (under seal), and approved by the Zoning Administrator and Town Attorney, either through cash, a surety performance bond, irrevocable letter of credit or other instrument readily convertible into cash at face value, either with the Town or in escrow with a financial institution designated as an official depository of the Town. This surety shall be retained by the Town to cover all cost of the decommissioning requirements.

Section 8.38 Waste Management and Remediation Services

- A. Minimum tract size: five (5) acres
- B. Access to landfill areas or outdoor facility uses shall be completely enclosed with a security fence or other barrier to vehicular access. The security fence shall completely screen the landfill from view.
- C. The landfill shall be set back a minimum of 75 feet from any public right-of-way and a minimum of 500 feet from any residential zoning district.
- D. No filling is permitted within a Class A floodplain, wetland area, utility easement, or designated water supply watershed and no filling shall be permitted within 100 feet of a stream.
- E. Spill containment plans for all hazardous materials shall be maintained and provided yearly to the Town.
- F. All waste management facilities may only handle waste that can legally be disposed of or handled.
- G. Vehicular access to a waste management facility shall be provided on a major or minor thoroughfare, or on a road improved to industrial capacity as determined by the Director of Public Works or for state-maintained roads, by the NCDOT.
- H. For any landfill, there shall be a minimum of 300' setback from any residentially zoned property in separate ownership, and a 100' Type A buffer yard shall be installed and maintained along all property lines and public rights-of-way.
- I. For any solid waste transfer station, unloading or loading shall take place within a building enclosed on at least three sides.
- J. For any landfill, a reclamation plan for reuse shall be filed with the Town prior to the beginning of any operations.

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Section 8.39 Wireless Telecommunications Towers

- A. Wireless communications facilities attached to existing or proposed structures such as water towers, transmission towers, church steeples, streetlights, bell towers, or similar structures do not require a Special Use Permit.
- B. The maximum height shall be 150 feet.
- C. Evidence the tower will be utilized by a wireless provider.
- D. Towers shall be setback a distance equal to the total height measured from grade elevation from all adjoining properties. Where the transmission tower is located adjacent to a R-P, R-S or R-T zoning lot or street and there is no intervening structure to block the view of the tower base and improvements, a Type A buffer yard shall be installed around the outside of all improvements on the site, including the base of the tower, any ground buildings or equipment, and security fencing, so as to provide spatial separation and create a visual block from adjacent properties and streets.
- E. All new towers shall be set back a minimum of one hundred (100) feet from any adjacent zoning lot zoned R-P, R-S, and R-T; and a minimum forty (40) feet from any other adjacent zoning lot. Additionally, all new towers shall be setback a minimum distance equal to tower height from any existing residential structure and from any public street.
- F. The tower shall be structurally designed to support at least one additional user, and the special use application shall include a statement that the owner is willing to permit other user(s) to attach communication facilities, on a commercially reasonable basis, which do not interfere with the primary purpose of the tower.
- G. Access to available technically feasible space for collocation on any towers shall not be denied to any competitive users or service provider.
- H. Applicants shall provide a N.C. licensed engineering certification that states the structure's construction in the event of collapse will cause no damage to structures on adjacent zoning lots.
- I. When towers are proposed within the RS zoning district, existing trees within the distance of the tower height shall be preserved for the life of the tower, except for trees that need to be removed to construct access and for the tower compound. Documentation shall be included with the application that demonstrates control of the land necessary for the tower compound and tree preservation area through property ownership, long-term lease, or easement.
- J. Unless otherwise required by the Federal Aviation Administration (FAA), the finish of the transmission tower shall be non-shiny or glossy; any painted color shall be muted or neutral; and no lights or strobe lights shall be placed on the tower. If lights are required by the FAA, the least obtrusive lighting option available under FAA guidelines shall be installed; white strobe lights are discouraged from use.
- K. No outside storage shall be allowed on any facility site.
- L. Associated buildings located in any residential zoning district shall not be used as an employment center for any worker. This provision does not prohibit the periodic maintenance or monitoring of equipment and instruments.

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- M. No commercial advertising shall be allowed on the facility's site.
- N. Security fencing of at least 6 feet in height shall be provided around the tower base and any ground equipment.
- O. All wireless communications towers shall be constructed using a monopole design.
- P. Towers shall meet the standards of the Federal Aviation Administration and the Federal Communications Commission.
- Q. Alternative Compliance: A developer may propose a setback that varies from the strict application of the provisions of this section in order to accommodate the unique character of the site and the surrounding area. A request for alternative compliance shall be made as part of the Special Use Permit application. When evaluating alternative compliance, the Town Council may consider the following factors and should only approve the request upon a finding that the proposed setback fulfills the intent and purposes of this section as well or better than would strict conformance with the requirements of this section:
 - i. Topography;
 - ii. Surrounding development plans;
 - iii. Existing or proposed development on the property;
 - iv. Existing and proposed screening and buffering;
 - v. Distance to existing residential structures;
 - vi. Vegetation and tree canopy.
- R. All applications for new towers shall provide evidence the tower will be utilized by a wireless provider; that space for collocation on existing towers is not available; and that space will be provided for future collocations.
- S. All applications for new towers shall include photo simulations of the new tower in its proposed location showing how it appears with its surroundings.
- T. Applicants for transmission towers shall hold a community meeting prior to the date of the special use permit public hearing by the Town Council. Notice of the location, date, and time of the community meeting shall be mailed to the owners of any property located within five hundred (500) feet of the subject parcel of land as well as to the neighborhood or homeowners' association representing any property located within five hundred (500) feet of the subject parcel as identified by the Planning Department.
- U. Decisions to approve or deny proposals for new telecommunications towers shall be rendered by the Town Council within one hundred fifty (150) days from a complete application submittal.

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- V. Tower Removal and Decommissioning Plan Requirement. The applicant shall be required to submit a plan defining the conditions upon which decommissioning will be initiated. Notice shall be provided to the Zoning Administrator when the tower is placed out of service. Towers which are not used for a period of six (6) months or more shall be removed by the property owner within 120 days. Further, a form of surety equal to 100% of the cost of decommissioning under the plan, as estimated by a N.C. licensed engineer (plans shall be sealed), and approved by the Zoning Administrator and Town Attorney, either through cash, a surety bond, irrevocable letter of credit or other instrument readily convertible into cash at face value, either with the Town or in escrow with a financial institution designated as an official depository of the Town. This surety shall be retained by the Town to cover all cost of the decommissioning requirements.

Section 8.40 Wireless Communications Facilities, Small_(Small Wireless Facilities)

A. The purposes of these special requirements are to:

- (1) Minimize the impacts of small wireless facilities on surrounding areas by establishing standards for location, structural integrity, and compatibility;
- (2) Encourage the location of small wireless facilities on existing structures, thereby minimizing new visual, aesthetic, and public safety impacts, and to reduce the need for additional antenna-supporting structures;
- (3) Encourage coordination between suppliers of small wireless facilities in the town and its extraterritorial jurisdiction;
- (4) Accommodate the growing demand for wireless services and the resulting need for small wireless facilities;
- (5) Regulate in accordance with all applicable federal and state laws;
- (6) Establish review procedures that ensure that applications for small wireless facilities are reviewed and acted upon with a reasonable period of time or any specific period of time required by law;
- (7) Protect the unique aesthetics of the Town while allowing its citizens and businesses to access the benefits of wireless communications services; and
- (8) Encourage the use of existing buildings and structures as locations for small wireless facilities infrastructure as a method to minimize the aesthetic impact of related infrastructure.

It is not the purpose or intent of these requirements to prohibit or have the effect of prohibiting wireless communications services; unreasonably discriminating among providers of functionally equivalent wireless communications services; regulate the placement, construction, or modification of wireless communications facilities on the basis of environmental effects of radio frequency emissions where it is demonstrated that the small wireless facility does or will comply with applicable FCC regulations; or to prohibit or effectively prohibit collocations or modifications that the town must approve under state or federal law. The provisions of this subchapter are in addition to, and do not replace, any

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obligations an applicant may have under any franchises, licenses, encroachments, or other permits issued by the Town.

B. Siting of Small Wireless Facilities:

In order to protect the aesthetics of the Town, to minimize new visual and public safety impacts, and to reduce the need for additional antenna-supporting structures, the town prefers that small wireless facilities be located outside the public right-of-way, collocated on existing utility poles or wireless support structures, concealed, and have accessory equipment mounted on the utility pole or wireless support structure. These preferences are intended as guidance for development of an application for small wireless facilities.

C. Applicability:

The standards established in this section shall apply only to qualifying small wireless facilities, qualifying utility poles, and qualifying Town utility poles. Nothing in this section shall be interpreted to excuse compliance with, or to be in lieu of, any other requirement of state or local law, except as specifically provided herein. Without limitation, the provisions of this subchapter do not permit placement of small wireless facilities on privately owned utility poles or wireless support structures, or on private property, without the consent of the property owner, including all owners of interests in such property.

D. Exemptions:

Unless expressly set forth herein, the following categories of small wireless facilities are exempt from the requirements of this section, provided that they meet the location and design requirements set forth below:

- (1) Any telecommunications facility that is owned and operated by an amateur radio operator licensed by the FCC and that measures less than 65 feet in height when measured from ground level.
- (2) Over-the-air reception devices pursuant to 47 CFR § 1.4000, provided that it satisfies applicable requirements of the UDO.
- (3) Eligible facilities requests.
- (4) Routine maintenance of small wireless facilities; the replacement of small wireless facilities with small wireless facilities that are the same size or smaller; or installation, placement, maintenance, or replacement of micro wireless facilities that are suspended on cables strung between existing utility poles or town utility poles in compliance with all applicable laws or regulations by or for a communications services provider authorized to occupy town rights-of-way and which is remitting taxes pursuant to NCGS 105-164.4(a), (4(c)) or (a)(6).
- (5) A temporary small wireless facility, upon the declaration of a state of emergency by federal, state, or local government, and a written determination of public necessity by the Town; provided that such facility must comply with applicable federal and state requirements, and must be removed at the conclusion of the emergency.
- (6) Public safety facilities or installations required for public safety on public or private property, including transmitters, repeaters, and remote cameras, provided that such facilities are designed to match the supporting structure.

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- (7) A small wireless facility located in an interior structure or upon the site of any stadium or athletic facility, provided that the small wireless facility complies with all applicable codes.

E. Collocation of Small Wireless Facilities:

(1) Collocation of small wireless facilities on land that is zoned for single-family development or that is used for single-family residential purposes, and any small wireless facility that extends more than ten feet above the utility pole, town utility pole, or wireless support structure on which it is collocated, are subject to applicable requirements of the UDO. Nevertheless, replacement of an existing streetlight for which the town is financially responsible with a streetlight capable of including a collocated, concealed small wireless facility is permitted on land zoned for single-family development or used for single-family purposes.

(2) Collocation of qualifying small wireless facilities in Town right-of-way or outside of Town right-of-way on property that is in a non-residential zoning district and that is not used for single-family residential purposes is subject to the following requirements:

- a. Application. Applicants must complete an application as specified in form and content by the town.
- b. Height. Each new small wireless facility shall not extend more than ten feet above the utility pole, town utility pole, or wireless support structure on which it is collocated.
- c. Public safety. In order to protect public safety: (i) Small wireless facilities shall not cause signal or frequency interference with public safety facilities or traffic control devices and shall not physically interfere with other attachments that may be located on the existing pole or structure; (ii) A structural engineering report prepared by an engineer licensed by the State of North Carolina, certifying that the host structure is structurally and mechanically capable of supporting the proposed additional antenna or configuration of antennae and other equipment, extensions, and appurtenances associated with the installation; (iii) A traffic and pedestrian management plan must be submitted for any installation requiring any portion of such installation to be located within the public right-of-way.
- d. No portion of a small wireless facility may be placed in the public right-of-way:
 1. In a manner that obstructs pedestrians or vehicular or bicycle access, obstructs sight lines or visibility for traffic, traffic signage or signals, or interferes with access by persons with disabilities; and an applicant may be required to place equipment in vaults in order to avoid obstructions or interference; or
 2. That involves placement of pole-mounted equipment (other than cabling), the lowest point of which is lower than eight feet above ground level.
- e. An abandoned small wireless facility shall be removed within 180 days of abandonment.
- f. Objective design standards:
 - (a) No advertising signs or logos are permitted on small wireless facilities.

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- (b) Small wireless facilities shall be blended with the natural surroundings as much as possible. Colors and materials shall be used that are compatible with the surrounding area, except when otherwise required by applicable federal or state regulations. Small wireless facilities shall be located, designed, and/or screened to blend in with the existing natural or built surroundings to reduce the visual impacts as much as possible, and to be compatible with neighboring land uses and the character of the community.
 - g. Stealth and concealment:
All small wireless facilities shall be stealth facilities. Antenna and accessory equipment must be shrouded or otherwise concealed.
 - h. Screening, landscaping, and spacing requirements for ground equipment:
Ground equipment shall be screened, to the extent possible, with evergreen plantings or other acceptable alternatives approved by the Zoning Administrator.
 - I. Applicable codes. Small wireless facilities must meet all applicable codes.
- F. Use of Utility Poles and Town Utility Poles:
The placement of new utility poles is prohibited by the town's undergrounding requirements in the UDO unless permitted by applicable sections. Modification or replacement of qualifying utility poles and qualifying town utility poles existing as of the date of adoption of this ordinance is not prohibited; however, the maintenance, modification, operation, or replacement of qualifying utility poles and qualifying town utility poles associated with small wireless facilities are subject to the following requirements.
 - 1. Application. Applicants must complete an application as specified in form and content by the Town.
 - 2. Height. Each modified or replacement utility pole or city utility pole shall not exceed:
 - (a) Forty feet above ground level on property zoned for or used as a single-family residential property, or in the right-of-way adjacent to such property where existing utilities are installed underground, unless a variance is granted pursuant to the UDO; or
 - (b) Fifty feet above ground level on all other property. Each new small wireless facility shall not extend more than ten feet above the associated utility pole, town utility pole, or wireless support structure on which it is collocated.
 - 3. Small wireless facilities. All requirements set forth in this subchapter and applicable to small wireless facilities shall apply to such facilities located on a utility pole, town utility pole, or wireless support structure.

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4. Public safety. In order to protect public safety:
 - (a) No replacement utility poles or Town utility poles associated with a small wireless facility are permitted in or adjacent to public street right-of-way unless such replacement pole is breakaway rated.
 - (b) No portion of a utility pole or Town utility pole associated with a small wireless facility may be placed in the public right-of-way: (a) in a manner that obstructs pedestrians or vehicular or bicycle access, obstructs sight lines or visibility for traffic, traffic signage or signals, or interferes with access by persons with disabilities; and an applicant may be required to place equipment in vaults in order to avoid obstructions or interference; or (b) that involves placement of pole-mounted equipment (other than cabling), the lowest point of which is lower than eight feet above ground level.
5. Objective design standards. Utility poles or Town utility poles associated with a small wireless facility shall be blended with the natural surroundings as much as possible. Colors and materials shall be used that are compatible with the surrounding area, except when otherwise required by applicable federal or state regulations. Utility poles or town utility poles associated with a small wireless facility shall be located, designed, and/or screened to blend in with the existing natural or built surroundings to reduce visual impacts as much as possible, and to be compatible with neighboring land uses and the character of the community.
6. Stealth and concealment. All antenna and accessory equipment must be shrouded or otherwise concealed.
7. Applicable codes. Utility poles and Town utility poles associated with a small wireless facility must meet applicable codes.
8. Standard conditions.
 - (a) Applicant must obtain all other required permits, authorizations, approvals, agreements, and declarations that may be required for installation, modification, and/or operation of the proposed facility under federal, state, or local law, rules, or regulations, including but not limited to encroachment agreements and FCC approvals. An approval issued under this subsection is not in lieu of any other permit required under the UDO or Town Code of Ordinances, nor is it a franchise, license, or other authorization to occupy the public right-of-way, or a license, lease, or agreement authorizing occupancy of any public or private property. It does not create a vested right in occupying any particular location, and an applicant may be required to move and remove facilities at its expense consistent with other provisions of applicable law. An approval issued in error, based on incomplete or false information submitted by an applicant or that conflicts with the provisions of the UDO, is not valid. No person may maintain a small wireless facility in place unless required state or federal authorization remain in force.

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- (b) Spacing Requirements. To minimize the adverse visual impacts associated with the proliferation and clustering of antennas and associated above-ground equipment associated with a small wireless facility, no small wireless facility in the right-of-way shall be located, to the extent practicable, within one hundred sixty-five (165) feet of any other small wireless facility in a right-of-way, unless the wireless service provider desiring to install small wireless facilities less than one hundred sixty-five (165) feet apart demonstrates to the town's satisfaction why such placement is necessary.
- (c) All small wireless facilities and related equipment, including but not limited to fences, cabinets, poles, and landscaping, shall be maintained in good working condition over the life of that use. This shall include keeping the structures maintained to the visual standards established at the time of approval. The small wireless facility shall remain free from trash, debris, litter, graffiti, and other forms of vandalism. Any damage shall be repaired as soon as practicable, and in no instance more than 30 calendar days from the date of notification by the town. In public rights-of-way, damaged or deteriorated components must be corrected within five business days of notification.
- (d) The property owner or applicant shall submit a certification letter from a North Carolina certified land surveyor or licensed engineer which verifies that structure height complies with the approved development plan.
- (e) The applicant or owner shall maintain onsite at the facility contact information for all parties responsible for maintenance of the facility.
- (f) Small wireless facilities, whether operating alone or in conjunction with other facilities, shall not generate radio frequency emissions in excess of the standards established by the FCC.
- (g) After written notice to the applicant and/or owner, the town may require the relocation, at the applicant/owner's expense, of any small wireless facility, and the associated utility pole, town utility pole, or wireless support structure on which it is collocated, located in the public right-of-way, as necessary for maintenance or reconfiguration of the right-of-way or for other public projects, or take any other action or combination of actions necessary to protect the health and welfare of the town.
- (h) Collocation or modification of small wireless facilities on an existing nonconforming wireless support structure or base station shall not be construed as an expansion, enlargement, or increase in intensity of a non-conforming structure and/or use, provided that the collocation or modification constitute an eligible facilities request.

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G. Approval process:

(1) All work within the Town rights-of-way is subject to approval of a work permit for work that involves excavation, affects traffic patterns or obstructs vehicular traffic within or along the town's rights-of-way. Any/all work to construct or install small wireless facilities in the Town right-of-way or outside Town right-of-way as described in (E)(2) above is subject to approval of a permit as provided for in these regulations. The provider shall comply with all the provisions and terms of the right-of-way work permit. As part of the application process, a photo rendering shall be provided of the proposed antenna that depicts aesthetic features including, but not limited to, the use of colors and concealment with a before and after installation exhibit. As-built construction drawings shall be provided to the town for all structures, equipment, cable, pipes and conduit located within a town or public right-of-way, and within any Town-owned utility or multi-purpose easement; and which must include, for fiber optic cable, the number of strands of fiber in the conduit. If any of the Town's utilities or other infrastructure is relocated within the right-of-way as part of the construction, the Town shall have final approval of the design and engineering of such relocated items. Applicants shall include an attestation that the small wireless facilities shall be activated for use by a wireless services provider to provide service no later than one (1) year from the permit issuance date, unless the Town and the wireless provider agree to extend this period or a delay is caused by a lack of commercial power at the proposed site.

(2) A fee shall accompany an application for approval of a collocated small wireless facility, as authorized by NCGS 160D-935(e). This fee shall consist of one hundred dollars (\$100.00) per facility for the first five small wireless facilities addressed in an application, plus fifty dollars (\$50.00) for each additional small wireless facility addressed in the application.

(3) The Zoning Administrator shall review the application and provide comment on any deficiencies in the wireless communication facility application in writing within thirty (30) days of submission or within some other mutually agreed upon time frame. The comment notice shall identify the deficiencies in the application which, if cured, would make the application complete. The wireless communication facility shall be deemed complete on resubmission if the resubmitted materials cure the original deficiencies indicated by the town.

(4) If the Town does not approve or deny the application following resubmission then the application shall be deemed approved within forty-five (45) days from the time the application is deemed complete or a mutually agreed upon time frame between the Town and the applicant.

(5) The Town may deny an application on the basis that it does not meet any of the requirements below:

- (a) The Town's applicable codes;
- (b) Local code provisions or regulations that concern public safety, objective design standards for decorative utility poles, town utility poles, or reasonable and nondiscriminatory concealment requirements; or
- (c) Public safety and reasonable spacing requirements concerning the location of ground-mounted equipment in a right-of-way. If the Town denies an application, then the Town must:

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- (d) Document the basis for a denial, including the specific code provisions on which the denial was based; and
 - (e) Send the documentation to the applicant on or before the day the Town denies an application. The applicant may cure the deficiencies identified by the Town and resubmit the application within thirty (30) days of the denial without paying an additional application fee. The Town shall approve or deny the revised application within thirty (30) days of the date on which the application was resubmitted. Any subsequent review shall be limited to the deficiencies cited in the prior denial.
- H. Within ninety (90) days following written notice from the Town, the wireless infrastructure shall provide, at its own expense, protect, support, temporarily or permanently disconnect, remove, relocate, change or alter the position of any small wireless facilities within the rights-of-way whenever the town has determined that such removal, relocation, change or alteration, is reasonably necessary for the construction, repair, maintenance, removal, or installation of any improvements in or upon the rights-of-way. When permanent disconnect and removal is required, the town shall, if requested, make available another location in the rights-of-way for a replacement or relocated new small wireless facility of equivalent height and type as the one removed and as nearby as practicable to the location of the original removed facility, consistent with the permitting requirements herein and all applicable laws.

Section 8.41 Yard Sales

- A. Yard, garage, tag, patio, and apartment sales are permitted without a permit, as an accessory use on any residentially, institutionally, or commercially developed lot in any district.
- B. Such sales shall be limited to no more than three (3) days per calendar month on the same lot.
- C. Yard sales are permitted only with the property owner's permission.

Section 8.42 Temporary Uses

This section authorizes the establishment of certain temporary uses of limited duration and special events, provided that such uses do not negatively affect adjacent land, and provided that such uses, or events are discontinued upon the expiration of a set time period. Temporary uses shall not involve the construction or alteration of any permanent building or structure and must meet all applicable provisions of this ordinance and all other ordinances of the Town of China Grove. Temporary use permits shall be reviewed and approved or disapproved by the Zoning Administrator. The Zoning Administrator make the following determinations in order to issue a permit for a temporary use:

- The proposed use will not materially endanger the public, health, welfare, and safety.
- The proposed use will not have a substantial negative effect on adjoining properties.
- The proposed use meets all applicable provisions of this ordinance and all other ordinances in the Town of China Grove

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A. General Requirements.

1. All applications for temporary use permits shall include a minor site plan and a written description of the proposed use or event, the duration of the use or event, and if applicable, the hours of operations, anticipated attendance, and any buildings, structures, signs, or attention-attracting devices used in conjunction with the use or event. The Zoning Administrator shall require written permission of the property owner that the temporary use may occur on the property. The Zoning Administrator may require reasonable proof of ownership or authorization from any person applying for a temporary use permit.
2. The temporary use permit shall not be issued unless the plans, specifications, and intended use of such buildings, structure, land, or part thereof conform in all respects to the provisions of this ordinance.
3. The Zoning Administrator may establish any additional conditions deemed necessary to ensure land use compatibility and to minimize potential adverse impacts on nearby uses, including but not limited to, hours of operation, temporary arrangement of parking and traffic circulation, requirements of screening/buffering, and guarantees for site restoration and cleanup of the temporary use.
4. No temporary signs shall be permitted in a public right-of-way or off-premises of the temporary use. All temporary signs associated with the temporary use shall be displayed no sooner than one week prior to the commencement of the temporary use and shall be removed no later than two days after the end of the temporary use. All temporary signs shall meet the requirements of Chapter 11 Signs of this ordinance.
5. No structures, sales, displays, rides, or activities pertaining to the event or sale shall be permitted in any required setback, public or private right-of-way or landscaping areas.
6. No use regulated by this section may occupy required parking spaces, access, maneuvering areas, or loading spaces or areas designated for another use.

B. Voiding of a Temporary Use Permit. In the event of failure to comply with the plans approved by the Zoning Administrator, or with any other conditions imposed upon the Temporary Use Permit, the permit shall thereupon become void and of no effect. In accordance with GS 160D-403(f), staff shall follow the same development review and approval process required for issuance of the development approval, including any required notice or hearing, in the review and approval of any revocation of that approval.

C. Specific Regulations for Temporary Uses and Structures.

1. **Temporary Construction Office Trailers.** Construction trailers used in conjunction with construction projects provided that the following conditions are met:
 - Such construction trailers may be located at a building site where there is a valid building

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permit for the construction project, or, in the case of a residential subdivision, a valid building permit for at least one of the residential units being constructed.

- All construction trailers shall be located at least 10 feet off any street right-of-way and not be placed in any required rear or side yard setback.
- In addition to construction trailers, at any construction site for a construction project valued at one million dollars or more, one or more security guard houses may be installed. Use of such structures may include overnight stay provided adequate sanitary facilities are provided and the same conditions for construction trailers are met.
- The temporary construction trailer shall be removed within ten (10) days after final inspection of the permanent structure or expiration of the corresponding building permit, whichever event occurs first.

2. **Temporary Sales Office.** Structures, whether temporary or permanent, located in a subdivision containing 25 or more lots, and used as sales offices for the subdivision development are permitted. Any temporary structure used as a sales office shall be located on a lot which is in compliance with the regulations of this Ordinance and shall meet all yard requirements for the applicable zoning district. At least five (5) off-street parking spaces shall be provided on the lot to accommodate persons using the sales office. If a permanent residential structure is used as the sales office, future use of said structure shall be for residential purposes. A trailer may be used as a temporary sales office, provided that the following conditions are met:

- The trailer shall be provided with underpinning, from the bottom of the walls to the ground, made of masonry, vinyl, pre-painted aluminum material, or other similar material.
- Landscaping shall be provided to create an aesthetically pleasing appearance.
- At the completion of the sales in a tract, or two (2) years from the date the temporary sales office began operation, whichever is sooner, said sales office shall cease operation unless the Zoning Administrator determines that substantial progress is being made in the selling and/or marketing of the lots and/or homes in the subdivision. In such case, one or more extensions (each not to exceed one year in duration) may be so authorized by the Zoning Administrator. If a temporary structure is used as the sales office, it shall be removed after its use as a sales office is terminated. Immediately after the structure is removed, the lot shall be returned to a natural state. Any paved or graveled driveway and/or parking area associated with the sales office shall also be removed. All bare soil areas on the lot shall be returned to a natural vegetative state (reseeded or sodded) immediately after removal of the sales office and driveway/parking area.

3. **Temporary Manufactured Home.** Manufactured homes may be allowed on a temporary basis in a zoning district in which such use is not listed as a permitted use, if a disaster occurs which results in an occupied, single-family dwelling being destroyed (i.e., it receives damage greater than 60 percent of its tax value as indicated on the most current tax listings). In this instance a manufactured home may be placed on the lot containing the dwelling unit which was destroyed. The purpose of allowing such manufactured home on said lot is to give the occupants of the destroyed dwelling unit a place to live while a new dwelling unit is being constructed or damage to the original dwelling unit is being repaired. If a manufactured home is used for such an occurrence, it is subject to the following conditions:

- Such manufactured home shall not be placed in the front yard and shall be located no closer than 15 feet to another principal residential structure on another lot and no closer than 10 feet to any lot line.
- A recreational vehicle is not allowed as a manufactured home.

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- The Zoning Administrator shall be given the authority to issue a zoning permit for such temporary use on a one-time basis only for a period of up to nine (9) months. Such permit may be renewed on a one-time only basis [for a period of no greater than nine (9) months] by the Board of Adjustment if it is determined that:
 - Construction of a new dwelling unit is proceeding in a diligent manner; and,
 - The granting of such permit will not materially endanger the public, health, welfare, or safety; and,
 - The location of the manufactured home on the site does not have a negative effect on abutting properties.
- 4. **Seasonal Sales Lots (i.e., trees, pumpkins, fireworks display, etc.).**
 - Shall only be permitted in NC, OI, CB, and HB Districts.
 - The display or sale of products/goods shall not occur in the public right-of-way or within one hundred (100) feet of a residential zoning lot.
 - The sales lot shall provide adequate parking and shall not create a parking shortage for the existing uses on site.
 - The hours of operation shall be compatible with the surrounding land uses.
 - Seasonal sales lots shall operate for a period not to exceed thirty (30) days. No more than two (2) such events are allowed per calendar year.
- 5. **Temporary Produce Stands.**
 - Shall only be permitted in NC, OI, CB, and HB Districts.
 - Written permission of the property owner that seasonal produce sales use may occur on the property is required.
 - Adequate off-street parking shall be provided.
 - Produce Stands may be permitted for a maximum of six (6) months but may be re-permitted upon submission of a new application.
- 6. **Circus, fairs, and carnivals.**
 - Shall only be permitted in the HB District.
 - Circus, fairs, and carnivals shall not be located on any required parking or loading spaces and shall not cause interference with the movement of emergency vehicles to provide adequate police, fire, or other emergency services.
 - The applicant shall provide site plan with the proposed location, intended activities, operation schedule, and any other information deemed necessary to evaluate impact on the adjoining properties and the community in general.
 - A 500 ft. setback shall be required from any residential zoning district.
 - The hours of operation shall be from no earlier than 8:00 am to no later than 11:00 p.m.
 - Any food service or sales shall be approved by the County Health Department.
 - Adequate bathroom facilities shall be provided.
 - All trash shall be removed in a manner approved by the Town of China Grove Public Works Department.
 - Adequate off-street parking shall be provided.
 - Activities shall not exceed seven (7) days in duration. No more than two (2) such events are allowed per calendar year.
- 7. **Civic Organization Events.**
 - Shall only be permitted in NC, OI, CB, and HB Districts.

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- The applicant shall provide site plan with the proposed location, intended activities, operation schedule, and any other information deemed necessary to evaluate impact on the adjoining properties and the community in general.
- Any food service or sales shall be approved by the County Health Department.
- Adequate bathroom facilities shall be provided.
- All trash shall be removed in a manner approved by the Town of China Grove Public Works Department.
- Adequate off-street parking shall be provided.
- Temporary event shall be for a period not to exceed thirty (30) days. No more than four (4) such events are allowed per calendar year.

D. Temporary Uses Not Listed.

Other temporary uses not listed may be granted by the Zoning Administrator. In considering approval of a temporary use, the Zoning Administrator may attach reasonable and appropriate conditions to ensure the public health, safety and welfare are protected. The approval of a temporary use shall be in accordance with the following:

1. The proposed used will not endanger the public health, safety and welfare;
2. The proposed used will not have a substantial negative impact on the adjoining properties; and
3. The use will be approved for a specific period of time, not to exceed one (1) year.

Nothing shall limit the Zoning Administrator from requiring approval from the Town Council or a text amendment to this Ordinance.